

108	Benitez vs. LAZ Parking California, LLC 2024-01441429	Motion for Approval of Class Settlement Plaintiffs Moises Benitez and Walter David Rodriguez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to September 3, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 11/21/2024, Plaintiffs Moises Benitez and Walter David Rodriguez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendants LAZ Parking California LLC and Alan Lazowski. (ROA #2.) Defendant answered on 2/14/2025. (ROA #23.) The operative complaint is the first amended complaint (FAC), filed on 1/13/2026 pursuant to the Court’s order granting leave, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #59.) On 2/13/2026, Plaintiffs filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement and Class Notice (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$2,500,000. The GSA includes \$100,000 allocated for PAGA penalties. The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. In the Settlement Agreement, the escalator clause includes an option allowing Defendant to shorten the Class Period. This is problematic because it renders the Class Period uncertain and may result in eliminating otherwise eligible Class Members from the settlement. 2. The Settlement Agreement must provide that the Court has final say on the validity and authenticity of requests for exclusion. 3. The Settlement Agreement must provide that while the settlement administrator may make the initial decision regarding workweek disputes, the Court may review any decision made by the administrator regarding such dispute. 4. All the releases in ¶¶ 5.1-5.3 have the following problematic language which would extend the release beyond those related to or arising out of the facts alleged in the operative complaint or PAGA notice: “and/or ascertained in the course of the Action.” The phrase “and ascertained in the course of the Action” should be deleted because it would be difficult to verify which facts were ascertained or not ascertained. 5. The Settlement Agreement should specify that the Court’s continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).
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6. Plaintiffs' counsel must attest to whether there are any concurrent pending cases involving similar claims against Defendant that may be impacted by the settlement and how, or confirm that there is none.

Class Counsel must also provide the Court with a revised Class Notice with the following revisions:

1. The notice should be revised so as to be consistent with the resolution of the issues identified above.
2. Page numbering should restart at 1.
3. The following sentences on p. 25 should be bolded: "Your legal rights are affected whether you act or not act. Read this Notice carefully. You will be deemed to have carefully read and understood it."
4. On pp. 25-26, it is confusing to list only 2 options at first and then list 5 options immediately thereafter. These two sections should be combined into a single section that just identifies the 5 main options.
5. On p. 26, the notice states that Class Members cannot object to the PAGA settlement. This is incorrect, as they can object—they just cannot opt out.
6. On p. 27, the notice includes a statement that "Plaintiffs and Class Counsel strongly believe the Settlement is a good deal for you" for various reasons. However, the Class Notice should "avoid any commentary on the merits of the settlement." (Guidelines for Approval of Class Action Settlements & PAGA Settlements, ¶ I.C.35.)
7. Rather than having Class Members draft their own opt-out requests, objections, and workweek disputes, the Class Notice should include separate forms for each of these processes.
8. Paragraph 7 may be interpreted as advising Class Members to wait to object until after Plaintiffs have filed their motion for final approval and motion for fee approval, which need not occur until 16 court days before the final approval hearing date and may therefore occur after Class Members' deadline to send written objections. The notice should simply inform Class Members of the deadlines for Plaintiffs' filings in support of final approval as well as the final approval hearing date.
9. Paragraph 9 should specify not only the URL for the website maintained by the administrator but the Court's URL for accessing case documents.
10. The notice should specify that the judgment, "whether favorable or not," will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).)

Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

1. Attorney information must be deleted from the caption page.
2. The title of the document should add "and PAGA" between "Class Action" and "Settlement."
3. The date for the preliminary approval hearing should be updated to reference the continued hearing date.

4. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
5. The proposed order should also include the definitions for PAGA Aggrieved Employees and the PAGA Period.
6. The proposed order should specify the amounts proposed to be allocated from the GSA to attorneys' fees, litigation costs, enhancement(s), administration costs, and PAGA penalties (including to the LWDA and to Aggrieved Employees).
7. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and re-mailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys' fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiffs' declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.
8. The proposed order should specify the Court's continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

The Court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at <https://voypubapps.occourts.org/complex-civil-calendar>.

Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance.

Plaintiffs are ordered to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.